

grounds, as above. Minor's rights and interests cannot be compromised without a suitable fiduciary having notice and opportunity to be heard. Petitioner has not shown that minor's parent is a guardian of the estate or other fiduciary who may appear to represent minor's interests in these proceedings.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

7. S-PR-0012937 In Re the Estate of Bakos, John Edward MD

Petition to administer estate (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Petition to administer estate (M Bakos)

Appearance is required for continued hearing on petition to administer estate.

Will contest (E Vlk)

Appearance is required for continued hearing on petition to administer estate.

Missing 30 days' service of summons to all persons entitled to service of notice of the petition to probate the will. Prob.C. § 8250(a).

Ex parte application for trial preference

Appearance is required for hearing on ex parte application for trial preference. It is recommended the application be denied.

No creditor claim of any person is before the court; even if it were, no such claim would be tried within this decedent's estate case. No creditor, including the claim of applicant Betty Bakos, has been rejected by a personal representative. If Betty Bakos's creditor claim had been rejected (or is deemed rejected by claimant), the aggrieved creditor is then required to "commence[] an action on the claim." Prob.C. § 9353. No such action has been commenced; had it been commenced, it would proceed as its own action (usually a civil complaint). No such separate action has been filed.

Moreover, it appears the probate court has no power to adjudicate Betty Bakos's claims within this decedent's estate proceeding because those claims are pending Bakos's dissolution action. The court granted dissolution in S-DR-00463311, *Bakos v. Bakos*, from the bench on October 13, 2015. Judgment of dissolution was later filed March 29, 2017. Both the October 13, 2015, minutes and the court's 2017 written judgment expressly

reserved determination of *all* other issues; this reservation was *mandatory* under Fam.C. § 2337(f), and remains in effect.

It is clearly established in California law that the death of a former spouse *after* a bifurcated dissolution judgment where the court reserved jurisdiction to determine all other issues does not divest the family court of any of its authority to try all related matters, including property characterization, division, etc. As set forth in *In re Marriage of Hilke* (1992) 4 Cal.4th 215, 220:

The death of one of the spouses abates a cause of action for dissolution, but *does not* deprive the court of its retained jurisdiction to determine the collateral property rights if the court has previously rendered judgment dissolving the marriage.

Id., citing *McClenny v. Super. Court* (1964) 62 Cal.2d 140, 144, and *Kinsler v. Super. Court* (1981) 121 Cal.App.3d 808, 811–812. As set forth in *Kinsler*,

When the trial court . . . entered judgment dissolving the status of the marriage it properly reserved jurisdiction to decide the collateral property issues. . . . [Having so done, husband's] subsequent death neither abated the remainder of the dissolution action nor deprived the court of its retained jurisdiction to dispose of the remaining issues. . . . The court should have merely substituted in place of the deceased the [personal representative of the] estate of the deceased as party to *the dissolution proceeding*.

Kinsler, *supra*, at 812 (emphasis added). See also CEB Practice Under the California Family Code: Dissolution, Legal Separation, Nullity § 17.42; CEB Crossover Issues in Estate Planning and Family Law § 4.72; and CEB California Decedent Estate Practice §§ 29.28 & 29.58. As Betty Bakos concedes, her claims are the dissolution action claims to characterize and divide assets, and to make related determinations.

Thus the claims of Betty Bakos do not appear to be before the court, both because there is no jurisdiction within this proceeding to hear them and because they have not reached any procedural stage where they can be tried. Ex parte relief should be denied.

Further, a determination of what property is in the estate (or whether there is even any property to be administered) is immaterial to the petitions to administer the estate and probate the will, and to the will contest. Neither of the administration petitions nor the will contest depends in any way on the existence or non-existence of property in the estate or on the validity of any claim against decedent or the estate.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing.